September 9, 2026

The City Council of the City of Sulphur, Louisiana, met in regular session at its secondary location located at 401 Arena Road, Sulphur, Louisiana, on September 14, 2026, at 5:30 p.m., after full compliance with the convening of said meeting with the following members present:

JAMES LEDOUX, Council Representative of District 1
TROY DARBY, Council Representative of District 2
DANIELLE MONCEAUX, Council Representative of District 3
JOSH BADEN, Council Representative of District 4
DANNY DIPETTA, Council Representative of District 5

After the meeting was called to order and the roll called with the above result, prayer and pledge was led by Mr. LeDoux.

Barry Baden addressed the Council asking the Chairman to say each motion before they vote and what's intended.

Motion was made by Mr. Darby seconded by Mr. Baden that the minutes for the 3rd special meeting held on August 24, 2026, be amended as follows:

> *He (Josh Baden) also stated that in order to be reimbursed by FEMA it has to be an ~~immovable~~ movable building.*

Motion carried unanimously.

Motion was then made by Mr. Badon seconded by Mr. LeDoux that the minutes from the 3rd special meeting held on August 24, 2026, be adopted.

Motion carried unanimously.

Mr. DiPetta then stated that item #1A is being proposed to be added to the agenda:

1A. Resolution authorizing an investigation into the potential violations of public bid law for the recent construction done at 501 Willow Avenue. (Josh Baden)

Mr. DiPetta then stated that this item was being added to the agenda since the agenda was already published at the time this item came up. Mr. Baden then read a letter concerning state statues on elected officials being mandated to report violations of public bid law and they're creating a statutory breach and could face consequences.

There was then discussion with Mr. LeDoux asking how this goes hand in hand with the Attorney General information and Mr. Baden stated that it allows Council to start the leg work. The information has already been sent to the Louisiana Legislative Office, Board of Ethics, FBI and District Attorney's office. Mr. DiPetta stated that he didn't understand why the Council has to do an investigation if it's already been sent to all these entities. Billy Loftin, City Attorney, stated that the request is to investigate the status of Willow Street and it appears to him that this matter has been completely investigated unless Mr. Baden thinks there's something that hasn't been investigated. Mr. Baden stated that if it's bypassed it prevents legal counsel from looking further into it. Mr. Baden then stated that this item was supposed to be on the agenda but was accidentally left off. Motion was then made by Mr. Baden seconded by Mr. LeDoux that the following resolution be added to the agenda:

1A. Resolution authorizing an investigation into the potential violations of public bid law for the recent construction done at 501 Willow Avenue.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mrs. Monceaux, Mr. Baden
NAYS: Mr. Darby, Mr. DiPetta
ABSENT: None

And the above resolution failed (not a unanimous vote) to be added to the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DiPETTA, Chairman

Motion was then made by Mr. Darby seconded by Mr. LeDoux that item #5 be removed from the agenda:

5. Introduction of Ordinance accepting the donation of property from Belle Savanne Partners, LLC, and authorizing the Mayor to execute said Act of Donation for property located in Mimosa Park Phase II Subdivision where a lift station is located.

Austin Abrahams, Director of Public Works, stated that this item needs to be removed since a servitude is also needed and it can be put on an upcoming agenda. Charlie Atherton stated that the ordinances need to be in final form when presented to the Council.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #5 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____
ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. Baden seconded by Mr. Darby that item #6 be removed from the agenda:

6. Introduction of Ordinance accepting Dedication of Servitude from Belle Savanne Partners LLC, to create a Servitude of Drive and Passage for the lift station located in Mimosa Park Phase II Subdivision.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #6 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

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ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. Baden seconded by Mr. Darby that item #8 be removed from the agenda:

8. Introduction of Ordinance abandoning streets in Forest Park Subdivision.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #8 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

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ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. Darby seconded by Mr. LeDoux that item #10 be removed from the agenda. Mayor stated that he was sick last week and he's not happy with the verbiage and Rostan has too much control in the contract.

10. Introduction of Ordinance authorizing Mayor Stutes to sign Contract with Rostan Solutions, LLC for a Public Works Supervisor for the City of Sulphur.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #10 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. LeDoux seconded by Mr. Darby that item #16 be removed from the agenda. Mr. Loftin stated that the main reason this is being removed is because the Mayor was sick last week and it wasn't given to the Council in a timely manner.

16. Resolution accepting the recommendation of Mayor Stutes for the appointment of Billy Loftin as Assistant City Attorney/City Prosecutor for the City of Sulphur and authorizing the execution of contract.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #16 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

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ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. LeDoux seconded by Mr. Darby that item #17 be removed from the agenda. Mr. Baden asked Mr. Wright if he's ever represented any employee of the City of Sulphur. Mr. Wright stated that he's been in business for 52 years so he may have. Mr. Baden asked if he's currently representing anyone in the current administration. Mr. Wright stated, no.

17. Resolution accepting the recommendation of Mayor Stutes for the appointment of Kenneth "Mike" Michael Wright as City Attorney for the City of Sulphur and authorizing the execution of contract.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. DiPetta
NAYS: Mr. Baden
ABSENT: None

And item #17 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____
ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. LeDoux seconded by Mr. Darby that item #18 be removed from the agenda. Mr. DiPetta stated that this item wasn't given to Council in a timely manner.

18. Resolution accepting the recommendation of Mayor Stutes for the appointment of annual audit firm Langley Williams and Co. and authorizing the execution of contract.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #18 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____
ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mr. Darby seconded by Mrs. Monceaux that item #27 be removed from the agenda:

27. Resolution appointing a member to the Civil Service Board chosen from a list of names supplied by McNeese State University.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #27 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____
ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Motion was then made by Mrs. Monceaux seconded by Mr. Baden that item #28 be removed from the agenda:

28. Resolution appointing a member to the Civil Service Board chosen from a list of names supplied by McNeese State University.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And item #28 was declared removed from the agenda on this 14th day of September, 2026.

ATTEST:

_____ _____
ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The first item on the agenda is a resolution authorizing an investigation pursuant to Section 2-08 of the Home Rule Charter of the City of Sulphur into the city's hiring, appointment, suspension, and termination practices to determine compliance with the Home Rule Charter, city ordinances, adopted personnel policies and applicable Louisiana law. Mr. DiPetta stated that he would like to make the following amendment to Section 1 of the Resolution:

SECTION 1: Establishing an Investigative Committee

Upon adoption of this resolution, the Chairman of the City Council shall appoint a ~~two~~ **five** person committee made up of **2** council members which may include the Chairman

to coordinate and direct the investigation within the scope of the Resolution to be referred to as the "Personnel Committee".

Mr. Baden stated that he'd like to make additional amendments. He'd like to add dates, names involved and names of departments. The Resolution is too vague. He's in support of the resolution but it needs to be more specific. Mr. DiPetta then read a letter which included that there will be witness notices and subpoenas.

Barry Badon stated that all Council has to do is read the Home Rule Charter and it tells you how to do these kinds of things. Your motion isn't specific. Mayor Stutes then stated that it needs to be noted in Mr. DiPetta's investigation of their employment interference. It was stated to him by Mr. Darby and Mr. DiPetta that they would challenge him as Mayor with employment of certain individuals. If they want to fight him on employment that has to be dealt with also. It's backhanded what y'all are doing. He just wanted that to be on record.

Mr. LeDoux stated that if we're going on record let me read Section 4-12 of the Home Rule Charter. It says "the Mayor may propose to the Council the creation, change, alteration, or consolidation or abolish of City departments, offices and agencies and/or the reallocation of the functions, powers, duties and responsibilities of such departments, offices or agencies, including those provided for in this charter." Mr. LeDoux stated that everything he just read is with Council approval. In the budget that was handed to Council in the Organizational Chart the residents of Sulphur are at the very top then the City Council, Mayor, City Court and Marshal. Those departments branch off with one going to the Mayor and one going to City Council and everybody follows underneath that and hiring Chief of Staff should have had Council approval.

Billy Loftin, City Attorney, stated that he advised the Mayor on anything that has occurred during his hiring or firing within the city since he became Mayor does not constitute an administrative reorganization. Mr. DiPetta stated that this is one part of the investigation. Charlie Atherton addressed the Council and spoke on what the Mayor "may" do according to the Home Rule Charter.

Mrs. Monceaux stated that she does agree with the investigation but doesn't agree with any member of the Council being involved in it. Mr. Darby stated that he agrees with Mrs. Monceaux.

At this time Mr. Darby commented on what the Mayor said earlier about Mr. Darby fighting him on everything. Mr. Darby clarified "that what he may have said at his business or on the streets that if you were going after people in our employment like Chief John Wall or Chief John Naquin that are outstanding people, then I will fight you for protecting those guys. I never said I would protect you against anybody that was underqualified". There was then discussion on whether the Mayor's Chief of Staff is qualified or not. Mr. Darby stated that's the reason so many people are at this meeting.

Sheila Broussard then addressed the Council and spoke on the Council having the right to do the investigation and how the board that will be appointed had to abide by the open meetings laws.

Wendy Wingate addressed the Council and stated that this whole conversation only dealt with making one amendment to the resolution. Changing from 2 to 5 Councilmen and inserting 2 other council members. This is hypocrisy because you shut people down from speaking. There was then discussion about who was involved in making the decision on the two amendments in this resolution. Mr. Loftin, City Attorney, stated that he was involved with Mr. DiPetta in making this amendment.

Bill LeBlanc addressed the Council and stated that people need to see what's going on in these meetings and they need to remember this at election time.

Mr. LeDoux then asked who would be on this committee. He would like to see someone from the west side of town be on it. Another amendment would be to stop talking about the investigation until it's final and there are results.

Mr. Baden stated that he's made multiple attempts to contact Mr. DiPetta on his resolution to disseminate some of the information and he hasn't given us any information. Mr. DiPetta then asked Council Clerk to make a note that Mr. Baden is not staying on the topic of the amendment. Mr. Baden then asked the Council Clerk to make a note the Mr. DiPetta is withholding information being bias and almost a form of obstruction of justice in the investigation that he's asked for.

Bill LeBlanc addressed the Council and asked for them to get a third party for the investigation.

Charlie Atherton addressed the Council and suggested that the Council remove this from the agenda and get together and discuss it then come back with a solution.

Mr. Darby stated that he would remove his motion and Mr. DiPetta removed his second on the amendment. Motion was then made by Mr. Darby seconded by Mr. Baden that the resolution be deferred to the next regular Council meeting.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the resolution was deferred to the next regular Council meeting on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

Mr. Loftin, City Attorney, then read what his suggestions would be to the resolution:

> Upon adoption of this resolution, the Chairman of the City Council shall appoint a 5-person committee made up of 1 appointee from each district within 30 days to coordinate and direct the investigation within the scope of the resolution as set forth in the top of the resolution to be referred to as a personnel committee.

He also stated that the following could be added:

With proposed appointees from each Council member.

The next item on the agenda is Rule to Show Cause for the condition of the following addresses:

a. To condemn single-story building or structure located at 641 Invader Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances.

The Attorney representing the owner addressed the Council asking for an extension. Mr. Loftin stated that the notice wasn't given to the succession representatives. Tommy Deville, Property Standards, stated that the home needs to be secured, doors and windows closed. Motion was made by Mr. Darby seconded by Mrs. Monceaux that the home has to be secured within 30 days and grant a 60-day extension.

Motion carried unanimously.

To condemn garage/shed/storage building located at 405 Breaux Lane, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Mr. LeDoux stated that he will recuse from voting for personal reasons. Tommy Deville, Property Standards, asked the Council to give the owner 60 days to do repairs. Motion was made by Mr. DiPetta seconded by Mrs. Monceaux to defer to the November City Council meeting.

A vote was then called with the following results:

YEAS: Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None
RECUSE: Mr. LeDoux

And the above address was deferred to the November City Council meeting on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

To condemn single-story building located at 1316 Dean Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, stated that there hasn't been utilities for this property in years. Motion was made by Mrs. Monceaux seconded by Mr. LeDoux that the above address be condemned.

Motion carried unanimously.

To condemn accessory structure building located at 2312 Merwood Drive, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Mr. Baden stated that this home has already been torn down and no action is needed.

To condemn single-story building located at 498 Avenue C, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, stated that there hasn't been any communication with the property owner and the property is in bad shape. Motion was made by Mrs. Monceaux seconded by Mr. Baden that the above address be condemned.

Motion carried unanimously.

To condemn single-story building located at 1106 N. East Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, stated that no permits have been pulled and it needs to be condemned. Motion was made by Mr. Baden seconded by Mr. LeDoux that the above address be condemned.

Motion carried unanimously.

To condemn single-story building located at 211 Evelyn Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, stated that the owner is cleaning the property and he'll pull permits soon. He's asking the Council to grant 60 days so he can pull those permits. Motion was made by Mr. Darby seconded by Mr. LeDoux that the above address not be condemned.

Motion carried unanimously.

To condemn single-story building located at 200 Matilda Drive, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, stated that the owner has pulled permits. Motion was made by Mrs. Monceaux seconded by Mr. Baden that the above address not be condemned.

Motion carried unanimously.

To condemn single-story building located at 99 Avent Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. Tommy Deville, Property Standards, asked for a 90- day extension since they are waiting for an asbestos report. Motion was made by Mr. Baden seconded by Mr. Darby that the above address be given a 90-day extension.

Motion carried unanimously.

The next item on the agenda is an introduction of ordinance amending Chapter 12, Section 16 of the Code of Ordinances of the City of Sulphur – Grass and weeds – cutting required (grass on retail, commercial and business properties maximum height of 6 inches rather than 12 inches). Mr. Loftin, City Attorney, stated that he was asked by staff to amend the ordinance for the height of grass from 12 inches

to 6 inches for business properties. Thomas Bourgeois addressed the Council and stated that he does brush cutting and they cut down to 6 inches. His cutter only goes down to about 5 ½ feet. Motion was made by Mr. Darby seconded by Mr. LeDoux that the following ordinance be introduced:

> ORDINANCE AMENDING CHAPTER 12, SECTION 16 OF THE CODE OF ORDINANCES OF THE CITY OF SULPHUR – GRASS AND WEEDS – CUTTING REQUIRED (GRASS ON RETAIL, COMMERCIAL AND BUSINESS PROPERTIES MAXIMUM HEIGHT OF 6 INCHES RATHER THAN 12 INCHES).

Motion was then made by Mr. Darby seconded by Mr. LeDoux that the said ordinance be filed and remain on file with the Clerk of the Council, in final form, for public inspection and that the Mayor is hereby authorized and instructed to publish the Public Notice of Introduction of the above proposed ordinance in the "American Press", the official journal of the City of Sulphur, Louisiana, and that the said Notice of Introduction of the above ordinance is substantially in the following form:

PUBLIC NOTICE

PUBLIC NOTICE is hereby given, in accordance with Section 2-12B of the Home Rule Charter of the City of Sulphur, the following ordinance:

> ORDINANCE AMENDING CHAPTER 12, SECTION 16 OF THE CODE OF ORDINANCES OF THE CITY OF SULPHUR – GRASS AND WEEDS – CUTTING REQUIRED (GRASS ON RETAIL, COMMERCIAL AND BUSINESS PROPERTIES MAXIMUM HEIGHT OF 6 INCHES RATHER THAN 12 INCHES).

A public hearing on said ordinance will be held at 5:30 p.m. on the 13th day of October, 2026, in the Council Chambers at their temporary location, 501 Willow Avenue, Sulphur, Louisiana.

CITY OF SULPHUR, LOUISIANA
BY:_____
DANNY DIPETTA, Chairman

Motion carried unanimously.

The next item on the agenda is an introduction of ordinance amending contract between the City of Sulphur and CrowderGulf, LLC for disaster recovery assistance following a natural or manmade disaster. (extend contract for 1 additional year and expand definition of "fill dirt"). Austin Abrahams, Director of Public Works, stated that this is part of the PPDR (Personal Property Debria Removal). Motion was made by Mr. Darby seconded by Mr. LeDoux that the following ordinance be introduced:

ORDINANCE AMENDING CONTRACT BETWEEN THE CITY OF SULPHUR AND CROWDERGULF, LLC FOR DISASTER RECOVERY ASSISTANCE FOLLOWING A NATURAL OR MANMADE DISASTER.

Motion was then made by Mr. Darby seconded by Mr. LeDoux that the said ordinance be filed and remain on file with the Clerk of the Council, in final form, for public inspection and that the Mayor is hereby authorized and instructed to publish the Public Notice of Introduction of the above proposed ordinance in the "American Press", the official journal of the City of Sulphur, Louisiana, and that the said Notice of Introduction of the above ordinance is substantially in the following form:

PUBLIC NOTICE

PUBLIC NOTICE is hereby given, in accordance with Section 2-12B of the Home Rule Charter of the City of Sulphur, the following ordinance:

ORDINANCE AMENDING CONTRACT BETWEEN THE CITY OF SULPHUR AND CROWDERGULF, LLC FOR DISASTER RECOVERY ASSISTANCE FOLLOWING A NATURAL OR MANMADE DISASTER.

A public hearing on said ordinance will be held at 5:30 p.m. on the 13th day of October, 2026, in the Council Chambers at their temporary location, 501 Willow Avenue, Sulphur, Louisiana.

CITY OF SULPHUR, LOUISIANA
BY:_____
DANNY DIPETTA, Chairman

Motion carried unanimously.

The next item on the agenda is an introduction of ordinance amending the Code of Ordinances of the City of Sulphur, Louisiana, to establish safety, identification, marking, insurance, bonding, damage repair, and financial responsibility requirements for contractors, vendors, utility companies, and other persons performing work within the City of Sulphur; providing for protection of city property, public infrastructure, utilities, rights-of-way, and the public; providing for contractor responsibility for hazards, damage, and restoration; and providing for enforcement and related matters. Mr. Baden stated that there was a safety issue on the corner of Cypress Street and Huntington Street while repairing a watermain. There weren't any shoring boxes, and water had been leaking in this area for a while creating unstable

ground underneath it. Contractors that we hire need to be vetted and insured and they need to have a safety guy at the location which relieves the city of liability.

Mayor Stutes stated that they have taken measures ever since that night and he's gotten with Code Enforcement to designate a person to tract that as well as damages from contractors and to follow those safety measures. They have taken measures to fill this position.

Mr. Baden stated that this ordinance doesn't just cover proper licensing, it also covers certifications etc. If a contractor is doing FEMA work under a FEMA contract they need have a DUNS or SAMS number.

Mr. DiPetta then asked Mr. Loftin, City Attorney, if he had a chance to review the ordinance. Mr. Loftin stated that he did have the opportunity to review but hasn't approved it. Mr. Baden put this ordinance together in a way he wanted it to read. He's not saying he's refusing to approve it, but he certainly can. Mr. DiPetta stated that he thinks it would be a good idea for the Attorney to review and make comments on it. Mr. Loftin stated that he can review it and make comments at final action. Mr. Loftin stated that the Council can introduce it then he'll make any revisions necessary then at the next meeting Council can amend it and adopt as amended.

Charlie Atherton stated that the ordinance has to be in final form before Council can introduce or adopt it. It has to be ready for codification.

Wendy Wingate stated that she doesn't recall anything in the Home Rule Charter that says the Attorney has to review all ordinances. Why would they want the Attorney to review this ordinance and not every ordinance. It was her understanding that the Attorney was involved in all items on the agenda. Mr. DiPetta stated that as he read the ordinance it was clear that the wording was not the Attorney's work. There was then discussion about communicating with the Attorney from the Council.

Motion was then made by Mr. Darby seconded by Mr. Baden that the following ordinance be introduced:

> ORDINANCE AMENDING THE CODE OF ORDINANCES OF THE CITY OF SULPHUR, LOUISIANA, TO ESTABLISH SAFETY, IDENTIFICATION, MARKING, INSURANCE, BONDING, DAMAGE REPAIR, AND FINANCIAL

RESPONSIBILITY REQUIREMENTS FOR CONTRACTORS, VENDORS, UTILITY COMPANIES, AND OTHER PERSONS PERFORMING WORK WITHIN THE CITY OF SULPHUR; PROVIDING FOR PROTECTION OF CITY PROPERTY, PUBLIC INFRASTRUCTURE, UTILITIES, RIGHTS-OF-WAY, AND THE PUBLIC; PROVIDING FOR CONTRACTOR RESPONSIBILITY FOR HAZARDS, DAMAGE, AND RESTORATION; AND PROVIDING FOR ENFORCEMENT AND RELATED MATTERS.

Motion was then made by Mr. Darby seconded by Mr. Baden that the said ordinance be filed and remain on file with the Clerk of the Council, in final form, for public inspection and that the Mayor is hereby authorized and instructed to publish the Public Notice of Introduction of the above proposed ordinance in the "American Press", the official journal of the City of Sulphur, Louisiana, and that the said Notice of Introduction of the above ordinance is substantially in the following form:

PUBLIC NOTICE

PUBLIC NOTICE is hereby given, in accordance with Section 2-12B of the Home Rule Charter of the City of Sulphur, the following ordinance:

ORDINANCE AMENDING THE CODE OF ORDINANCES OF THE CITY OF SULPHUR, LOUISIANA, TO ESTABLISH SAFETY, IDENTIFICATION, MARKING, INSURANCE, BONDING, DAMAGE REPAIR, AND FINANCIAL RESPONSIBILITY REQUIREMENTS FOR CONTRACTORS, VENDORS, UTILITY COMPANIES, AND OTHER PERSONS PERFORMING WORK WITHIN THE CITY OF SULPHUR; PROVIDING FOR PROTECTION OF CITY PROPERTY, PUBLIC INFRASTRUCTURE, UTILITIES, RIGHTS-OF-WAY, AND THE PUBLIC; PROVIDING FOR CONTRACTOR RESPONSIBILITY FOR HAZARDS, DAMAGE, AND RESTORATION; AND PROVIDING FOR ENFORCEMENT AND RELATED MATTERS.

A public hearing on said ordinance will be held at 5:30 p.m. on the 13th day of October, 2026, in the Council Chambers at their temporary location, 501 Willow Avenue, Sulphur, Louisiana.

CITY OF SULPHUR, LOUISIANA
BY:_____
DANNY DIPETTA, Chairman

Motion carried unanimously.

The next item on the agenda is an introduction of ordinance granting a Third Amendment for Lease Agreement between the City of Sulphur and Verizon Wireless for the tower located at 130 Benoit

Lane. Motion was made by Mr. Darby seconded by Mr. Baden that the following ordinance be introduced:

ORDINANCE GRANTING A THIRD AMENDMENT FOR LEASE AGREEMENT BETWEEN THE CITY OF SULPHUR AND VERIZON WIRELESS FOR THE TOWER LOCATED AT 130 BENOIT LANE.

Motion was then made by Mr. Darby seconded by Mr. Baden that the said ordinance be filed and remain on file with the Clerk of the Council, in final form, for public inspection and that the Mayor is hereby authorized and instructed to publish the Public Notice of Introduction of the above proposed ordinance in the "American Press", the official journal of the City of Sulphur, Louisiana, and that the said Notice of Introduction of the above ordinance is substantially in the following form:

PUBLIC NOTICE

PUBLIC NOTICE is hereby given, in accordance with Section 2-12B of the Home Rule Charter of the City of Sulphur, the following ordinance:

ORDINANCE GRANTING A THIRD AMENDMENT FOR LEASE AGREEMENT BETWEEN THE CITY OF SULPHUR AND VERIZON WIRELESS FOR THE TOWER LOCATED AT 130 BENOIT LANE.

A public hearing on said ordinance will be held at 5:30 p.m. on the 13th day of October, 2026, in the Council Chambers at their temporary location, 501 Willow Avenue, Sulphur, Louisiana.

CITY OF SULPHUR, LOUISIANA
BY:_____
DANNY DIPETTA, Chairman

Motion carried unanimously.

The next item on the agenda is an introduction of ordinance creating the Home Rule Charter Commission. Mr. DiPetta stated that the Home Rule Charter is still operative, but changes need to be made to it. There are sections that aren't in compliance with state laws. Mrs. Monceaux agreed with Mr. DiPetta. Mr. Darby stated that he'd like to make a motion to defer until the Council can discuss this more. Mr. Baden stated to Mr. DiPetta that at the last meeting Mr. DiPetta said Council was taking on too much when he presented his Attorney General's opinion.

Ethan Miller addressed the Council and stated that he's for a revision to the Charter and asked that it be adopted.

Barry Badon addressed the Council and agreed with Mr. Darby and Mr. Badon that it be deferred.

Charlie Atherton addressed the Council and stated that the Council needs to give the current Home Rule Charter the opportunity to work.

Wendy Wingate addressed the Council and asked if the Council even had (off the top of their heads) who they would appoint to this commission. It needs to be deferred until names can be presented.

Sheila Broussard addressed the Council and asked if the Chairman can explain how the Commission will be appointed. It's not being transparent if everyone doesn't know the names. She also stated that the Council can't even get along right now and with all the investigations going on that will tie up employees and the Charter is too important to not be the main focus.

Motion was then made by Mr. Baden seconded by Mrs. Monceaux to give Mrs. Broussard 3 more minutes to speak. Motion carried unanimously.

Mrs. Broussard continued to say for a commission to be effective they need to speak with the Human Resources Department when they go over that section. The Commission needs to consult with all the different departments when drafting the Home Rule Charter. Mrs. Broussard then asked Mayor Stutes if the City could handle investigations currently underway and the additional demands of the Home Rule Charter Commission without taking significant staff time and resources away from running the city servicing its citizens? Mayor Stutes stated, no. Mrs. Broussard went on to say that there's a section in the Charter that discusses Council pay. Do y'all think there will be good discussions with the public about that at this point and time?

Mr. Atherton asked to speak again. Motion was then made by Mr. Darby seconded by Mrs. Monceaux to give Mr. Atherton 3 more minutes since he ran out of time last time he spoke. Motion carried unanimously.

Mr. Atherton stated that the Charter lays out the framework of the powers and responsibilities of the Council. It doesn't dictate anything to do with public works or personnel. It simply gives you the authority to establish processes and procedures that the city administration has to follow.

At this time Mr. Darby removed his motion for approval. Motion was then made by Mr. Darby seconded by Mr. Baden to defer indefinitely.

Motion carried unanimously.

At this motion was made by Mr. LeDoux seconded by Mr. Baden that they break for a 5-minute recess. Motion carried unanimously (8:19 p.m.). Motion was then made by Mr. Baden seconded by Mr. Darby that the meeting reconvene (8:28 p.m.). Motion carried unanimously.

The next item on the agenda is a public hearing on ordinance declaring certain surplus movable property of the City of Sulphur and providing for the disposal thereof (scrap metal and vehicles). Motion was made by Mr. Darby seconded by Mr. LeDoux that the following ordinance be adopted to-wit:

ORDINANCE NO. 2030, M-C SERIES

AN ORDINANCE DECLARING CERTAIN SURPLUS MOVABLE PROPERTY OF THE CITY OF SULPHUR AND PROVIDING FOR THE DISPOSAL THEREOF.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, and in accordance with LA. R.S. 33:4712, that the following described surplus movable property of the City of Sulphur, not needed for public purposes, after having been duly advertised be declared surplus:

BE IT FURTHER ORDAINED that Mayor Jacob Stutes is authorized to dispose of the above-mentioned surplus movable property and to sign all paperwork in connection therewith.

BE IT ALSO FURTHER ORDAINED that this ordinance shall become effective immediately upon the Mayor's signature.

DEPT	TYPE	DESCRIPTION	YEAR	MAKE	MODEL	SERIAL #/VIN #	REASON	DATE	ESTIMATED VALUE
SHOP	MISC	SCRAP METAL	NA	NA	NA	NA	SCRAP	1/8/26	$300.00
SHOP	TQ	2005 GMC SIERRA	2005	GMC	SIERRA	2GTEC19V451329393	REPLACED	1/8/26	$1,500.00
POLICE	TQ	2014 CHEVY TAHOE	2014	CHEVY	TAHOE	1GNLC2E00ER223593	REPLACED	4/22/26	$4,500.00
POLICE	TQ	2014 CHEVY TAHOE	2014	CHEVY	TAHOE	1GNLC2E03ER224088	REPLACED	4/23/26	$4,500.00
POLICE	TQ	2014 CHEVY TAHOE	2014	CHEVY	TAHOE	1GNLC2E00ER229040	REPLACED	4/1/26	$4,000.00
POLICE	TQ	2014 CHEVY TAHOE	2014	CHEVY	TAHOE	1GNLC2E01ER228897	REPLACED	4/7/26	$4,500.00
POLICE	TQ	2017 FORD EXPLORER	2017	FORD	EXPLORER	1FM5K8ARXHGA36805	REPLACED	3/26/26	$3,000.00
POLICE	TQ	2017 FORD EXPLORER	2017	FORD	EXPLORER	1FM5K8ARXHGA36806	REPLACED	3/26/26	$3,000.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U20FL111969	REPLACED	3/25/26	$3,500.00
POLICE	TQ	2014 CHEVROLET CAPRICE	2014	CHEVY	CAPRICE	6G3NS5U20EL946830	REPLACED	3/20/26	$3,000.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U26FL112045	REPLACED	3/24/26	$3,700.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U28FL111933	REPLACED	3/23/26	$3,500.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U21FL112048	REPLACED	3/24/26	$3,800.00
POLICE	TQ	2014 CHEVROLET CAPRICE	2014	CHEVY	CAPRICE	6G3NS5U2XEL961187	REPLACED	3/25/26	$3,800.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U21FL111935	REPLACED	3/24/26	$3,700.00
POLICE	TQ	2015 CHEVROLET CAPRICE	2015	CHEVY	CAPRICE	6G3NS5U20EL946813	REPLACED	3/25/26	$3,000.00

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said ordinance was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution awarding low bid received for Sodium Hydroxide 50% solution 90,000 lbs. Motion was made by Mr. Darby seconded by Mr. LeDoux that the following resolution be adopted to-wit:

RESOLUTION NO. 3711, M-C SERIES

RESOLUTION AWARDING LOW BID RECEIVED FOR 90,000 LBS. OF SODIUM HYDROXIDE 50% SOLUTION.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that bids for 90,000 lbs. of Sodium Hydroxide 50% Solution were opened and read aloud in an open and public bid session on Thursday, September 3, 2026, at 10:00 a.m. and bids were as follows:

COMPANY	**Cost**
UnivarSolutions	$18,351.00
Hawkins	$18,783.00

BE IT FURTHER RESOLVED that the City Council does hereby accept the recommendation of Mayor Jacob Stutes and award the bid for 90,000 lbs. of Sodium Hydroxide 50% Solution as follows:

COMPANY	**Cost**
UnivarSolutions	$18,351.00

BE IT FURTHER RESOLVED that Mayor Jacob Stutes is authorized to sign all paperwork in connection therewith.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution awarding low bid received for Dyed Diesel – 5,000 gal. Motion was made by Mr. Darby seconded by Mr. LeDoux that the following resolution be adopted to-wit:

RESOLUTION NO. 3712, M-C SERIES

RESOLUTION AWARDING LOW BID RECEIVED FOR 5,000 GALLONS OF DYED DIESEL.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that bids for 5,000 gallons of Dyed Diesel were opened and read aloud in an open and public bid session on Thursday, September 3, 2026, at 10:15 a.m. and bids were as follows:

COMPANY	**Unit Cost**	**Extension**
Gaubert Oil Co. LLC	$5.064	$5.064

BE IT FURTHER RESOLVED that the City Council does hereby accept the recommendation of Mayor Jacob Stutes and award the bid for 5,000 gallons of Dyed Diesel as follows:

COMPANY	**Unit Cost**	**Extension**
Gaubert Oil Co. LLC	$5.064	$5.064

BE IT FURTHER RESOLVED that Mayor Jacob Stutes is authorized to sign all paperwork in connection therewith.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution amending Resolution No. 3674, M-C Series, to amend Section 8 regarding comments by the Council, Mayor and Public on agenda items. Mrs. Monceaux stated that with these changes it'll be a smoother way for public comments. There will be a sign-in logbook with all the resolutions attached. You'll just sign your name on which item you want to speak on. When the meeting starts, the binder will be given to the Chairman, and he'll call the names in order for each item. There will be a 5-minute limit on speaking rather than a 3-minute because stopping to take a vote to continue speaking takes up time. Motion was made by Mr. Baden seconded by Mr. Darby that the following resolution be adopted to-wit:

RESOLUTION NO. 3713, M-C SERIES

RESOLUTION AMENDING RESOLUTION NO. 3674, M-C SERIES, AMENDING SECTION FOR COMMENTS BY THE COUNCIL, MAYOR AND PUBLIC ON AGENDA ITEMS.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, in regular session convened that:

SECTION 1: Procedure for establishing agenda for regular Council meeting.

The procedure for establishing an agenda for a regular meeting of the City Council of the City of Sulphur, Louisiana, shall be as follows:

A. **Contact by Interested Persons** – Any interested persons who desire to be heard at any Council meeting on any matters relative to City government shall contact the Clerk of the Council or their respective Councilman during business hours prior to the Monday two (2) weeks before a regular Council meeting.

B. **Establishment of Proposed Agenda** – On the Monday two (2) weeks prior to any regular Council meeting, the Clerk of the Council shall contact the Mayor and each Council member for the purpose of establishing a proposed agenda for the forthcoming Council meeting. At that time, the Clerk of the Council shall advise the Mayor and each Council member of all hold-over items of business and all items of business received from the public.

No one other than the Mayor or any Council member may place an item on the proposed agenda.

In the interest of time, matters which may be resolved administratively shall not be placed on the agenda to be brought before the Council unless otherwise unresolved.

C. **Notice as to Proposed Agenda; Objection** – The Clerk of the Council shall deliver a copy of the proposed agenda to the Mayor and to each Council member at least 13 days prior to the Council meeting. If the Mayor or any Council member objects to the placing of any item on the proposed agenda, he shall immediately notify the Clerk of the Council, who shall, personally contact the Mayor and each Council member, advising of the objection to placing the item on the agenda. The item shall be removed from the agenda upon a unanimous decision of the Council; if removed, the person requesting that the item be placed on the agenda shall be notified by the Clerk of the Council. The Clerk of the Council shall then send the proposed agenda to the media.

D. **Notice as to Finalized Agenda; Provision for Additional Matters** – On the Monday prior to each Council meeting, the Clerk of the Council shall contact the Mayor and each Council member for the purpose of establishing the final agenda. At that time, the Clerk of the Council shall collect any new items that weren't on proposed agenda. If the Mayor or any Council member objects to the placing of any item on the final agenda, he shall immediately notify the Clerk of the Council, who shall personally contact the Mayor and each Council member, advising of the objection to placing the item on the agenda. The item shall be removed from the agenda upon a unanimous decision of the Council; if removed, the person requesting that the item be placed on the agenda shall be notified by the Clerk of Council. The Clerk of the Council shall then send the final agenda to the official journal, no later than the day following the finalization of said agenda, and the Clerk of the Council shall also post of copy of said agenda inside the entrance to City Hall not later than 4:30 o'clock p.m. on the Wednesday prior to the date of the regular meeting. The purpose of the foregoing is to fully inform the Mayor, each Council member and the general public of matters to be considered at that meeting; PROVIDED HOWEVER, that up to the time that the Clerk of the Council sends final agenda to the official journal additional matters may be added to said agenda by a written request to the Clerk of the Council which has the written consent of any three (3) members of the Council members thereon. Notice of these additional matters which have been placed on the agenda shall also be posted inside the entrance to City Hall by the Clerk of the Council, who shall notify the Mayor, each member of the Council, and the official journal, in the most expeditious way possible, of these additional items being placed on the agenda.

E. **Matters to be heard at Council Meetings** – Only the business stipulated in said agenda, or that's added to said agenda in the manner set forth hereinabove, will be considered at said meeting, except that a matter of business presented by the Mayor or by a Council member may be considered at said meeting after receiving a unanimous vote of the Council in accordance with state law, PROVIDED that said item of business be a routine administrative matter which developed between the time the agenda was submitted for publication and the said meeting.

F. **Notice to City Attorney** – In order that all items may be checked by the City Attorney as to form and legality so that he may give adequate advice to the Council in connection therewith, the Clerk of the Council shall immediately deliver to the City Attorney the proposed agenda; said Clerk shall also immediately deliver to the City Attorney the finalized agenda as established on the Monday preceding the regular Council meeting, and also any other item which may be subsequently added to said agenda before it has been posted at the front entrance to City Hall as provided in D above.

SECTION 2: Filing of Proposed Resolutions or Ordinances with Clerk of Council.

Any resolution or ordinance which has been prepared and which has been placed on the agenda shall be placed on file with the Clerk of the Council no later the 4:30 o'clock P.M. on the Wednesday preceding the regular Council meeting, upon the request of the Mayor or any Council member.

SECTION 3: Identification of Items

At the time any item, either resolution or ordinance, is placed on the agenda for Council meeting, said item shall be assigned a number and labeled with said number and the date on which said item can be considered by the Council, and shall also bear thereon the name of the sponsor of said item. The Council at its meeting shall consider the items which have been so dated and labeled in the order in which they have been numbered, except for those items moved around at the time of approval of the agenda.

SECTION 4: Time of Regular Meeting

All regular meetings of the Council shall commence at 5:30 o'clock P.M. on the second Monday of the month, or on the following day in the event that the second Monday is a legal holiday, or on such other day as may be established by ordinance of the City Council as the regular meeting date of the Council, or as a Council meeting may be continued by the Council, PROVIDED that any regular meeting may be adjourned from time to time in the event of lengthy sessions.

SECTION 5: Roberts Rules of Order

The rules contained in Roberts Rules of Order shall govern the conduct of all meetings of the Council in all cases to which they are applicable and in which they are not inconsistent with the Sulphur Home Rule Charter, special rules of order the Council may adopt, or State law.

SECTION 6: Special and/or Emergency Meetings

Special and/or emergency meetings of the Council may be called by the Mayor, or by the Chairman (or the Vice-Chairman, in the absence of the Chairman), or by any three (3) Council members. All notices calling a special and/or emergency meeting shall be issued by the Clerk of the Council. Public Notice of any special and/or emergency meeting shall be given by posting of said notice inside the entrance of City Hall; the Clerk of the Council shall also notify the Mayor, each Council member, the City Attorney, and the official journal not later than twenty-four (24) hours before the scheduled meeting. The notice shall distinctly specify the subject matter (s) of the business to be acted upon. The power of the Council to act at a special and/or emergency meeting shall be limited, under penalty of nullity, to the matter (s) specifically enumerated in the call.

SECTION 7: Order of Business:

The order of business at all regular meetings of the Council shall be as follows:

1. Call to order;
2. Invocation;
3. Pledge of Allegiance;
4. Roll Call;
5. Approval of the minutes of previous meetings;
6. Approval of agenda;
7. Consideration of, and action upon, those items on the agenda;
8. Public to address Council;
9. Adjournment.

The order of business at special and/or emergency meetings of the Council shall be as follows:

1. Call to order;
2. Invocation;
3. Pledge of Allegiance;
4. Roll Call;
5. Consideration of, and action upon, those item(s) stated in the call for the special meeting;
6. Adjournment.

SECTION 8: Comments by the Council, Mayor and Public on agenda items.

In view of the many items to consider and views to be expressed, the
Mayor and each member of the Council shall be allowed reasonable time for questions or to express his or her views without interruption from the other members.

Each agenda item should have its own sign-in sheet for citizen comments, listing the agenda item as numbered, along with the description of that item. The sign-in sheets will be placed at the entrance of the council meeting. Before the commencement of a council meeting, as citizens arrive, they can sign up to speak for each item by writing their name on the posted sign-in sheets. The master sign-in sheet is handed to the Chairman just before the meeting begins. During discussion of that item on the agenda, citizens are called on based on who signed up first and are called in order. After all names on the list have spoken, then the Chairman can ask if there is anyone else that would like to speak on that agenda item.

When speaking, citizens will initially be given 5 minutes to speak. At the end of the 5 minutes, the Chairman has the option to give the speaker an additional 2 minutes by simply letting the speaker know his time has run out and will be given an additional 2 minutes if necessary.

Any questions and answers that involve the Council Members and the speaker shall be made in addition to the time allotted herein. The City Attorney shall time all the public comments and exclude the time of questions from the Council Members and answers to same from the speaker. In the City Attorney's absence, the President of the City Council shall designate another timekeeper.

This rule shall apply to any and all meetings.

In accordance with the Home Rule Charter, Section 2-07(E) – The Council shall allow any citizens, wishing to be heard on any matter related to city government prior to the conclusion of the regular council meeting according to the procedures and time limitations set forth herein, including, but not limited to, the requirement to complete a Request to Appear.

SECTION 9: Terms of Chairman and Vice-Chairman

The Chairman and Vice-Chairman of the City Council shall be elected by the members of the City Council at their regular City Council meeting in May of each year to serve for a term of one (1) year.

SECTION 10: Effective Date of Resolution.

These rules and regulations shall be applicable on the date of adoption.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution accepting the recommendation of Mayor Stutes for the appointment of Austin Abrahams for Director of Public Works. Mayor Stutes stated that when Mr. Abrahams started, he didn't have a lot to go by. He's grown in this role. Motion was made by Mrs. Monceaux seconded by Mr. Darby that the following resolution be adopted to-wit:

RESOLUTION NO. 3714, M-C SERIES

RESOLUTION ACCEPTING THE RECOMMENDATION OF MAYOR STUTES FOR THE APPOINTMENT OF AUSTIN ABRAHAMS FOR DIRECTOR OF PUBLIC WORKS.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept the recommendation of Mayor Stutes for the appointment of Austin Abrahams for Director of Public Works.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None

ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution accepting the recommendation of Mayor Stutes for the appointment of Denise Fontenot as Director of Municipal Services. Mayor Stutes stated that Denise follows ordinances to the "T' and has no lack of talent in her department. Motion was made by Mr. Baden seconded by Mr. Darby that the following resolution be adopted to-wit:

RESOLUTION NO. 3715, M-C SERIES

RESOLUTION ACCEPTING THE RECOMMENDATION OF MAYOR STUTES FOR THE APPOINTMENT OF DENISE FONTENOT AS DIRECTOR OF MUNICIPAL SERVICES.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, that they do hereby accept the recommendation of Mayor Stutes for the appointment of Denise Fontenot as Director of Municipal Services.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution accepting the recommendation of Mayor Stutes for the appointment of Connie Reon as Director of Human Resources. Mayor Stutes stated that Connie is currently serving in this role and he'd like to reappoint her. Motion was made by Mr. Darby seconded by Mr. LeDoux that the following resolution be adopted to-wit:

RESOLUTION NO. 3716, M-C SERIES

RESOLUTION ACCEPTING THE RECOMMENDATION OF MAYOR STUTES FOR THE APPOINTMENT OF CONNIE RION FOR DIRECTOR OF HUMAN RESOURCES.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept the recommendation of Mayor Stutes for the appointment of Connie Rion for Director of Human Resources.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution granting a variance to Jesse Oliver, 763 North Claiborne Street, to allow for a chicken coop to be 40 feet from the west property line and 42 feet from the north and south property lines rather than the required 50 feet. Mr. LeDoux stated that this will set precedence if we vote for it. Chickens stink and he knows because his parents at one time had some. Mr. Oliver stated that they put hay and wood shavings every week. There was discussion about Mr. Oliver moving the chickens across the street from his home onto the neighbors' property by the wooded area and it'll have to be 50 feet from any residential property lines. Mrs. Monceaux stated that there's a reason we have an ordinance against this. Motion was made by Mr. Baden seconded by Mrs. Monceaux that the following resolution be adopted to-wit:

RESOLUTION GRANTING A VARIANCE TO JESSE OLIVER, 763 NORTH CLAIBORNE STREET, TO ALLOW FOR CHICKEN COOP TO BE 40 FEET FROM THE WEST PROPERTY LINE AND 42 FEET FROM THE NORTH AND SOUTH PROPERTY LINES RATHER THAN THE REQUIRED 50 FEET.

A vote was then called with the following results:

YEAS: None
NAYS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
ABSENT: None

And the said resolution failed on this 14th day of September, 2026.

ATTEST:

ARLENE BLANCHARD, Clerk

DANNY DIPETTA, Chairman

The next item on the agenda is a resolution authorizing the advertisement of bids for Stationary SCBA/Cascade Fill Station & Installation. Motion was made by Mr. Darby seconded by Mr. LeDoux that the following resolution be adopted to-wit:

RESOLUTION NO. 3717, M-C SERIES

Resolution authorizing the advertisement of bids for Stationary SCBA/Cascade Fill Station & Installation for the Fire Department.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby authorize advertisement for bids for Stationary SCBA/Cascade Fill Station & Installation for the Fire Department, said bid to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department.

BE IT FURTHER RESOLVED that the advertisement of bids will be in "The American Press, the official journal of the City of Sulphur, in three separate publications, giving notice as follows:

NOTICE TO BIDDERS

Separate and sealed bids for the advertisement of bids for Stationary SCBA/Cascade Fill Station & Installation for the Fire Department, will be received by the Clerk of the Council until 10:00 a.m. on the 20th day of October, 2025, at which time bids will be opened and read aloud in an open and public bid opening session to be conducted by the Director of Finance in the Conference Room at City Hall, and the City Council shall at a regular meeting on the 9th day of November, 2026, at 5:30 p.m. proceed to award the bid to the lowest bidder, to waive irregularities, or to reject any and all bids, or otherwise proceed thereto as provided by law. Bids are also available electronically at www.centralbidding.com; free membership is required to access. Said bids to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department located at 101 North Huntington Street, Sulphur, Louisiana

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

ARLENE BLANCHARD, Clerk

DANNY DIPETTA, Chairman

The next item on the agenda is a resolution approving the Calcasieu Parish Multi-Jurisdictional Hazard Mitigation Plan. Motion was made by Mr. Darby seconded by Mrs. Monceaux that the following resolution be adopted to-wit:

RESOLUTION NO. 3718, M-C SERIES

A RESOLUTION OF THE CITY COUNCIL TO ADOPT THE 2026 CALCASIEU PARISH MULTI-JURISDICTIONAL HAZARD MITIGATION PLAN.

WHEREAS, the City Council recognizes the threats that natural hazards pose to life, property, infrastructure, and the overall well-being of residents within the City of Sulphur; and

WHEREAS, the City of Sulphur participated in the development of the 2026 Calcasieu Parish Multi-Jurisdictional Hazard Mitigation Plan in accordance with the Disaster Mitigation Act of 2000; and

WHEREAS, the plan identifies mitigation goals, strategies, and actions intended to reduce long-term risk from future hazards and disasters; and

WHEREAS, adoption of the plan demonstrates the City Council's commitment to hazard mitigation and risk reduction, and supports eligibility to apply for certain federal hazard mitigation assistance programs, subject to applicable program requirements;

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF SULPHUR, LOUISIANA, THAT:

Section 1. In accordance with the City of Sulphur Home Rule Charter, the City Council hereby adopts the 2026 Calcasieu Parish Multi-Jurisdictional Hazard Mitigation Plan in accordance with the Disaster Mitigation Act of 2000 as the official hazard mitigation plan for City of Sulphur.

Section 2. The City Council supports continued participation in the mitigation planning process and implementation of mitigation actions identified in the plan, as resources and funding allow.

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution authorizing the advertisement of bids for a Vacuum Truck for Public Works. Motion was made by Mr. Baden seconded by Mrs. Monceaux that the following resolution be adopted to-wit:

RESOLUTION NO. 3719, M-C SERIES

Resolution authorizing the advertisement of bids for a Vacuum Truck for Public Works.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby authorize the advertisement of bids for a Vacuum Truck for Public Works, said bid to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department.

BE IT FURTHER RESOLVED that the advertisement of bids will be in "The American Press, the official journal of the City of Sulphur, in two separate publications, giving notice as follows:

NOTICE TO BIDDERS

Separate and sealed bids for the advertisement of bids for a Vacuum Truck for Public Works, will be received by the Clerk of the Council until 10:15 a.m. on the 7th day of October, 2026, at which time bids will be opened and read aloud in an open and public bid opening session to be conducted by the Director of Public Works in the Conference Room at City Hall, and the City Council shall at a regular meeting on the 13th day of October, 2026, at 5:30 p.m. proceed to award the bid to the lowest bidder, to waive irregularities, or to reject any and all bids, or otherwise proceed thereto as provided by law. Bids are also available electronically at www.centralbidding.com; free membership is required to access. Said bids to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department located at 101 North Huntington Street, Sulphur, Louisiana

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is a resolution authorizing the advertisement of bids for a Dump Truck for Public Works. Motion was made by Mr. Darby seconded by Mr. Baden that the following resolution be adopted to-wit:

RESOLUTION NO. 3720, M-C SERIES

Resolution authorizing the advertisement of bids for a Dump Truck for Public Works.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby authorize the advertisement for bids for a Dump Truck for Public Works, said bid to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department.

BE IT FURTHER RESOLVED that the advertisement of bids will be in "The American Press, the official journal of the City of Sulphur, in two separate publications, giving notice as follows:

NOTICE TO BIDDERS

Separate and sealed bids for the advertisement of bids for a Dump Truck for Public Works, will be received by the Clerk of the Council until 10:00 a.m. on the 7th day of October, 2026, at which time bids will be opened and read aloud in an open and public bid opening session to be conducted by the Director of Public Works in the Conference Room at City Hall, and the City Council shall at a regular meeting on the 13th day of October, 2026, at 5:30 p.m. proceed to award the bid to the lowest bidder, to waive irregularities, or to reject any and all bids, or otherwise proceed thereto as provided by law. Bids are also available electronically at www.centralbidding.com; free membership is required to access. Said bids to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department located at 101 North Huntington Street, Sulphur, Louisiana

A vote was then called with the following results:

YEAS: Mr. LeDoux, Mr. Darby, Mrs. Monceaux, Mr. Baden, Mr. DiPetta
NAYS: None
ABSENT: None

And the said resolution was declared duly adopted on this 14th day of September, 2026.

ATTEST:

_____ _____

ARLENE BLANCHARD, Clerk DANNY DIPETTA, Chairman

The next item on the agenda is Public Comment. David Nazet addressed the Council and stated that his family has a 5-generation business and Administration shouldn't be able to hire and buy what they want. They should run it like a business.

Lee Ann Hebert, Civil Service Secretary, addressed the Council and questioned why items appointing members to the Civil Service Board were removed from the agenda. She stated that the Mayor's Administrative Assistant was working on these appointments since May. The Civil Service Board hasn't been able to meet in months.

Wendy Wingate addressed the Council and stated that the bids and contracts were attached to the resolutions this month. She also asked for an update on a couple of projects. Austin Abrahams, Director of Public Works stated that he would get an update for her.

Vicki Nezat addressed the Council and stated that Bob's Exxon has been in business for 75 years. This town is their legacy. Citizens are so scared to speak up of what's happening in our city because of slander on Facebook.

James LeDoux then read a letter from his brother John stating what Faith, Family and Community means to him and how to build a stronger city.

There being no further business to come before the Council, the Chairman declared the meeting adjourned.

ATTEST:

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ARLENE BLANCHARD, Clerk	DANNY DiPETTA, Chairman

9-14-26
9:10 A.M.